

TENTATIVE RULING

Case: Deacon v. Lee et al.

Case No. CV-2025-0034

Hearing Date: January 14, 2026

Department Fourteen

9:00 a.m.

Defendants Kimberly Tsong-Min Lee and The Desert Law Group's request for judicial notice as to Exhibits 3 – 5, 11, 14 – 17 and 21 – 23 is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendants request for judicial notice as to Exhibits 2 and 6 are **DENIED**. No valid legal basis was provided regarding defendants' request as to these exhibits.

Defendants' motion for summary judgment is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1), (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The Court finds that defendants have met their burden to show that they did not owe any duty to plaintiff. (*Budd v. Nixen* (1971) 6 Cal.3d 195, 200; *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820-821; *Mt. Holyoke Homes, L.P. v. Jeffer Mangels Butler & 11 Mitchell, LLP* (2013) 219 Cal.App.4th 1299, 1308-1309; *Genisman v. Carley* (2018) 29 Cal.App.5th 45, 49; see *Responsible Citizens v. Superior Ct.* (1993) 16 Cal.App.4th 1717, 1733; *Nichols v. Keller* (1993) 15 Cal.App.4th 1672, 1684 ["...the attorney-client relationship is created by some form of contract, express or implied, formal or informal."]; *Friedman v. Friedman* (1993) 20 Cal.App.4th 876, 887 ["Although an implied in fact contract may be inferred from the "conduct, situation or mutual relation of the parties, the very heart of this kind of agreement is an intent to promise *Kane, Kane & Kritzer, Inc. v. Altagen* (1980) 107 Cal.App.3d 36, 40, citation omitted ["While neither a retainer nor formal agreement is required to establish the attorney-client relationship [citation], the relationship with respect to a particular transaction is nevertheless required to create the duty of an attorney to act for his client in the transaction."]; *Zenith Ins. Co. v. O'Connor* (2007) 148 Cal.App.4th 998, 1010, citing *Fox v. Pollack* (1986) 181 Cal.App.3d 954, 959 ["A] client's subjective belief that an attorney-client relationship exists, standing alone, cannot create such a relationship or a duty of care owed by the attorney to that plaintiff."]; RJN, Exhibit 5; Pott Decl., ¶ 9, Exhibit 6; UMFs 5, 7 – 9, 20 – 27.)

The Court further finds that plaintiff Katrina Deacon has not satisfied her burden of production showing a triable issue of material fact. (See *Aguilar, supra*, 25 Cal.4th at pp. 850, 862.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Magallon v. Fairmount Home Owners Association et al.**
Case No. CV-2025-2357

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendants Fairmount Home Owners Association, Silvercreek Association Management and Trident Property Management's motion for protective order and order staying depositions is **CONTINUED** to **February 3, 2026**, at 9:00 a.m. in Department Eleven.